

Social dialogue in the public services

Day 1 · Session 3 | Both sectors | Shared resource

Keep this pack for the whole week. This afternoon's sessions, and several later ones, assume you can refer back to the working agreements and forms-of-dialogue summary here without re-explanation. The legal and institutional framework has its own reference pack tomorrow morning.

What This Workshop Is For

Strengthen your practical skills in preparing for and conducting collective bargaining — including how to weigh what positional bargaining and needs-based (mutual-gains) bargaining each offer, and how to judge which approach, or which combination of the two, fits a given issue, mandate and relationship.

Build shared understanding of Kenya's legal and institutional framework for social dialogue in the public service.

Equip you to engage with the economic and fiscal dimension of negotiating with government specifically.

Give each sector a structured opportunity to apply these skills separately, then compare experience across sectors.

Establish shared ground between the two sectors and, if the proposed handbook launch is confirmed, connect its guidance with workshop practice.

Produce, by Friday, sector-specific action points for strengthening social dialogue.

Notice what is not on this list. There is no objective about winning, and no objective that says positional bargaining is simply wrong. Positional and needs-based bargaining are treated all week as two legitimate approaches with different costs and benefits — the skill is judging which one, or which combination, fits the situation in front of you.

Our Working Agreements for the Week

Learning by doing: most sessions involve an exercise, a discussion or a role-play, not just a presentation.

Confidentiality: what a colleague says about their own institution stays in this room.

Full participation: quieter voices are actively invited in, not only the most confident speakers.

Punctuality: from Wednesday, the role-plays and simulations are timed and cannot simply restart when the room is ready.

Respect across sides: workers', employers' and government participants are all here to build skill, not to score points.

Generic scenarios: our case material is fictional or composite, so we can be bold without anyone's real dispute in the room — this matters especially this afternoon and tomorrow.

Questions are welcome at any time — this is a workshop, not a lecture.

Phones on silent during sessions; breaks are the time to catch up.

Forms of Social Dialogue — Quick Reference

Form	Detail
Information-sharing	Providing relevant information. Any legal or agreed duties to respond, consult or act still apply.
Consultation	Views are exchanged and considered before a decision; decision authority remains as defined by the applicable arrangements.
Negotiation	Parties seek mutually acceptable terms. Binding effect depends on authority, lawful terms and any required registration or approvals.
Partnership	Continuing joint work and shared responsibility under agreed arrangements.

Reflect: Naming a Recent Interaction

Think of a recent interaction in your own institution. Which form was it, really — and did both sides agree on which form it was?

Prompt	Your notes
What was the interaction?	
Which form did I think it was?	
Which form did the other party seem to think it was?	
What, if anything, would I do differently next time?	

This Week at a Glance

Day	Detail
Monday (today)	Opening ceremony; our two sectors — common ground and shared goals; social dialogue in the public services; how conflict develops into a dispute

Day	Detail
Tuesday	Approaches to managing and resolving conflict; the Kenyan legal and institutional framework; positional and needs-based bargaining; constructive communication at the table
Wednesday	The negotiator's dilemma and generating options; alternatives, preparation and mandating; the week's first live role-plays; working with positions and needs, and reflecting on your own practice
Thursday	The economics of bargaining with government, in two parts; preparing and then running the sector negotiation simulations
Friday	Sharing across sectors and closing a negotiation; way forward, sector action points, evaluation and the closing ceremony

Notice that Monday and Tuesday contain no role-play at all — the practical work on these two days is discussion, case analysis and paired exercises. The first live role-play is on Wednesday afternoon. This is deliberate: a role-play run before the concepts are shared rehearses existing habits rather than building new ones.

Why Health and Higher Education Need a Distinct Approach

The employer is government, or government-adjacent — not a profit-making company, which changes what “ability to pay” means (more in Thursday's Economic Component sessions).

Essential-service and continuity-of-service considerations apply, especially in health.

Devolution (county health employers) and dual-funding structures (higher education) complicate what would otherwise be a single, simple bargaining relationship.